

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOWN QUARK SYSTEMS, LLC AND SUNNYSIDE DIGITAL,
INC., *Complainants*

v.

ZIM AMERICAN INTEGRATED SHIPPING SERVICES CO., LLC;
ZIM INTEGRATED SHIPPING SERVICES, LTD.; AND PORT OF
HOUSTON AUTHORITY OF HARRIS COUNTY, TEXAS,
Respondents.

DOCKET NO. 26-07

Served: June 30, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER GRANTING SECOND CONSENT MOTION FOR ENLARGEMENT OF TIME TO ANSWER

On June 29, 2026, Respondents ZIM American Integrated Shipping Services Co., LLC and ZIM Integrated Shipping Services, Ltd. filed a consent motion seeking a 30-day enlargement of time to answer the complaint. Commission Rule 102 permits an enlargement of time upon a showing of good cause. 46 C.F.R. § 502.102(a). A motion seeking an enlargement of time must be filed at least seven days prior to current deadline, which was previously extended to July 6, 2026. Dkt. 7. Commission Rule 71(a) further requires parties to confer prior to filing non-dispositive motions. 46 C.F.R. § 502.71(a).

The motion is timely and complies with Rule 71. In support of their motion, the ZIM Respondents cite the length of the complaint, ongoing work on related proceedings including two cases in federal court, a recent substitution of counsel, and consent of the parties. I find that the length and complexity of the complaint, along with the recent substitution of counsel, is sufficient cause for the requested extension. But I note that I have already granted a previous extension, and that co-respondent Port of Houston Authority of Harris County, Texas has already timely filed its answer. I caution the ZIM Respondents that no further extensions will be granted absent extraordinary circumstances.

Accordingly, the motion is **GRANTED**; the ZIM Respondents must respond to the complaint no later than **Wednesday, August 5, 2026**.

**ALEX
CHINTELLA**

Alex M. Chintella
Administrative Law Judge

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